

		The Court OVERRULES Objections Nos. 1-8. <i>Plaintiff to give notice.</i>
104	CARDCONNECT, LLC vs. SHIELDS, 20-01150194	Defendant Jeffrey S. Benice (“Defendant”) moves to dismiss the First Amended Complaint of Plaintiff CardConnect, LLC (“Plaintiff”) pursuant to Code of Civil Procedure sections 583.310 and 583.360. Defendant argues Plaintiff has failed to bring this action to trial within five years since its commencement. Defendant contends that the stay imposed upon receipt of Plaintiff’s Notice of Stay of Proceedings Re: Bankruptcy does not toll the five-year period because Plaintiff was obligated to exercise reasonable diligence in requesting that the stay be lifted as to the defendants who had not filed the bankruptcy petition, and was advised on May 23, 2024 that a motion to list the stay could be filed, and Plaintiff failed to act. “An action shall be brought to trial within five years after the action is commenced against the defendant.” (Code Civ. Proc., § 583.310.) “As to a defendant either expressly named in the original complaint, or named in the original complaint by a fictitious name, the action commences on the date of the filing of the complaint. [Citation.] But when a new party is added to the action, the action commences as to that party on the date of the order adding him or her as a party or on the date of filing of the pleading naming him or her as a new party.” (<i>Gray v. Firthe</i> (1987) 194 Cal.App.3d 202, 209; see also <i>Seto v. Szeto</i> (2022) 86 Cal.App.5th 76, 95, fn. 5 [“The five-year period is calculated separately for each defendant.”].) Defendant cites to <i>Rosefield Packing Co. v. Superior Court</i> (1935) 4 Cal.2d 120 to argue that the five-year period runs from Plaintiff’s filing of the initial complaint rather than the first amended complaint. In <i>Rosefield</i>, the California Supreme Court held that, despite the filing of an amended complaint by stipulation of the parties, the five-year time period ran from when the original complaint was filed. (Id. at pp. 124-125.) The Court did not consider whether a new five year period is triggered if an amended complaint adds a new defendant. Thus, <i>Rosefield</i> cannot stand for the proposition that an amended complaint which adds a new defendant does not trigger a new five year period as to

		that defendant. (<i>Wishnev v. The Northwestern Mutual Life Ins. Co.</i> (2019) 8 Cal.5th 199, 217.) Further, <i>Rosefield</i> was decided based on former section 583, which was repealed in 1984 and replaced by a new statutory scheme. As held in <i>Gray</i>, “changing the operative phrase from ‘within five years after the plaintiff has filed his action’ (former § 583, subd. (b)) to ‘after the action is commenced against the defendant’ (new § 583.310) manifests a clear intent to change the law.” (194 Cal.App.3d at p. 208.) Thus, even if <i>Rosefield</i>’s holding may be interpreted to mean an amended complaint would not trigger a new five year period against a new defendant under repealed section 583, <i>Gray</i> makes it clear that such a filing does trigger a five year period as to a new defendant under section 582.310. Defendant here was not named in this action until the FAC was filed on November 17, 2022. Five years from that date is November 17, 2027, a date which has not passed and is more than a year from the date of this hearing. Accordingly, Defendant’s Motion to Dismiss on this basis is DENIED without prejudice. <i>Moving party to give notice.</i>
105	Detmers vs. Cancellieri, 25-01532289	Plaintiff, Brett Detmers (“Plaintiff”), moves for an order directing service of summons on Defendant, Jack Augustine Cancellieri (“Defendant”), by publication in a newspapers in general circulation pursuant to Code of Civil Procedure section 415.50. The manner in which summons must be served in a civil action include (1) personal delivery to defendant (Code Civ. Proc. § 415.10); (2) substitute service by delivery to someone else at defendant’s usual residence or place of business coupled with mailing (Code Civ. Proc. § 415.20); (3) service by mail coupled with acknowledgement of receipt (Code Civ. Proc. § 415.30); and (4) service by publication (Code Civ. Proc. § 415.50). (Weil & Brown, Cal. Practice Guide: Civ. Proc. Before Trial (The Rutter Group June 2025 update) ¶¶ 4:181, 4:184, 4:193, 4:225, 4:245.) “Section 415.10 et seq. governs the manner of service of a summons. A summons may be served by various methods. If service of a summons by other means proves